Pine Valley Special Service District Meeting (PVSSD)
Minutes of the Meeting held On January 3, 2007

Attending Members: Mary Esther Putnam (Chairwoman); Gerald Schiefer (VC); Dall Winn; Ron Snow; Spencer Beckstrom
Absent Member: N/A
Also Present: Steve Robinson (Fire Chief), George Cropper (Treasurer) and Beverly Udell (Secretary)
Guests: Mark Wells; Dorrel Booth; Guin Winn

1. General Business:
a/b. Welcome – The meeting was called to order at 6:00 P.M. with the opening being the Pledge of Allegiance.
c. Welcome to new board member Spence Beckstrom. Spence is the oldest living native in the Valley. He spent 20 years practicing law in California. He is now living here fulltime, dividing his time between St. George and Pine Valley. Because of his legal background, he hopes that he will be able to contribute a lot to the PVSSD.
d. Minutes: Minutes were all read by Mary Esther. After review they were approved in the following sequence. March 29, 2006 – Ron motioned for approval and Dall seconded that motion. All were in favor. July 5, 2006 – Dall motioned for approval, Gerald seconded and all were in favor. August 2, 2006 – Gerald motioned for approval of the Minutes, Dall seconded that motion, all were in favor. December 6, 2006 – Gerald motioned for approval after the typos were corrected, Ron seconded that motion and all were in favor.

Beverly said that the Spectrum had been contacted about our meetings each month and that the Spectrum had indeed included it in today's paper.

e. Pine Valley Building Permits Reviewed: None. Mary Esther will call Deon to see if we have collected all the Impact fees that we should have.
f. Voting on the 2007 Budget - Treasurer's Report – George: Steve will not be putting in for any large grants this year., though we do have $15,000 set aside for any grants that we might receive. Dall asked what we had heard in regarded to the State grants. The answer was that we just got into round 2 of the State grant money. * Dorrel felt that maybe the budget was too "revved up", so George went over for him what was said at the Public Hearing meeting the month before by way of explanation (see George's report.) George also went over again what had occurred in 2006 (see additional report). Dorrel asked if the annual fees could ever be lowered again. Steve explained the projections for the next 5 years and how by law we are required to have contingency reserves, which so far we have never had. The building up of those reserves was one of the reasons for the annual fee increase. Dorrel said he was just afraid of the Fire Department over spending just because the money was there. Gerald said that the raise was predicated on the 5-year plan. Mary Esther asked if it would be prudent this quick to even talk about lowering the fees since they had just been raised in mid 2006. Ron felt it was indeed way too soon. When we started discussing the fee increase last year, we originally were talking about raising it to $175, but being so conscientious of the property owner's monies, we felt we could do with only raising it to $150. We certainly can in the future consider lowering the fees back down if we find we end up with a surplus. * Mark reminded every one about our reduced homer owner's insurance because of the fire department and how he saves much more in home insurance than he ever spends on the annual fee. Guin's opinion was that we should wait at least a year before considering lowering the fees. Dorrel said that he would rather have the money in his pocket, then in the bank account of the SSD if we ended up with a surplus. Dall agreed that we should wait to see after the letter goes out this year, and monies start coming back in, see how we fare, then maybe open this back up for discussion again. * Ron made the

motion to approve the budget with the proviso that we revisit the fee scale at a later date. Gerald seconded the motion and all were in favor.

f. **Voting on Board Member Positions for 2007 – Mary Esther:** For sake of time, Mary Esther chose to conduct the vote openly by a show of hands instead of in a private vote as had been done in the past. Gerald motioned to keep the Board positions the same (Mary Esther as the Board Chairperson. Gerald as the Vice Chair). Ron seconded that motion and all were in favor.

g. **Road Restrictions:** Mary Esther had visited with Jim Eardley during the month in regards to the OHV signage in Pine Valley. Jim said that we have to abide by the signs until they came down. He suggested sending a letter from to the PVSSD Board to the County Commissioners requesting the signs come down. Enterprise also has road restrictions Mary Esther drafted a letter that she thought might work and read it to the Board, then she opened it to public discussion. The letter had suggested maybe giving the public a loop in Pine Valley where it would be okay to ride OHVs. Gerald suggested asking for speed limits, but Dall countered saying that the letter would then give people the okay to ride on the streets and they aren't abiding by the current speed limits anyway. Currently the Utah law states that it is NOT okay to ride OHVs on the streets, so we would in essence be breaking the law by allowing it. That also makes for an enforcement problem. Dall also mentioned that in Spring City, they have an ordinance that says OHVs have to stay on the oiled roads instead of the dirt ones. Dall feels they should be on any of the side street either. Mary Esther said that with the current signs, the OHVs are chewing up the sides of the road. Steve reminded everyone that current Utah statutes say that they are NOT allowed in residential areas. We are NOT trying to change the laws or outlaw OHVs, because they Utah law says that they are already against the law in residential areas. We are simply trying to enforce the laws already in existence. Dall conquered and said that Utah state law says that OHVs are not allowed at all unless the Commissioners put a new ordinance in place overriding the law. Spencer motioned that a new letter be written reinforcing the current Utah law to the Commissioners. Dall suggested that people are told to trailer their OHVs out of the valley. He already trailers his out. Steve said that the same should be for the snowmobiles. Everyone on the Board concurred that we say no to all OHV riding within Pine Valley, as is the current law. Mark asked if we could ticket people and use that the revenue from that to pay for a contracted law enforcement official. The answer was already no, that the moneys would go to the County. Dorrel suggested with the surplus from the annual fees that we are charging that maybe we could rent a cop instead of lowering the fee. The County already told us we were allowed to hire a "rent-a-cop." Once again, it is not that we are trying to outlaw anything. It is already outlawed!

e. **Board Member Reports:**

→ **Gerald:** Feds will be in Pine Valley at 10:00 A.M. to burn. Steve will make some calls to get them help.

-> **Spence:** Volunteered to speak with Dave Patterson when needed.

➔ **Ron:** Spoke about the snow plow and how he doesn't think the streets should be bladed clear down to the mud. But if they don't, then people are driving on ice.

➔ **Dall:** Showed a report on purchasing procedures. He suggested that ALL expenditures for each month be brought before the Board at each meeting and have the Board as a whole approve each one. He also read purchasing codes from the "Little Manual for Special Service Districts" (pg. 14). Dall motioned that the Board adopt the purchasing codes as outlined in the manual. Gerald seconded and all were in favor.

f. **Fire Chief's Report- Steve:** there were no fire call outs for the last month and only 1 EMS call out. * As a follow-up to last month, Steve wanted to say that he received a letter back from the folks we got the new fire truck from. It stated that they have now paid the outstanding bills. * We have just one more warrenty item that will be taken care of in Febuary. * Not applying for any big ticket items from FEMA or State grants, just small things like hand tools, etc. We will be repeating the 2006 FEMA grant into 2007s requesting extrication equipment and SCBAs. * Steve

hopes to combine his $500 monthly allowance for January thru April to purchase backpacks to be ready my May start of the fire season. Also in April, he will buy a palate of foam. He saves $300 on freight if he orders by the palate. * Gae has been appointed the position of president over the EMS organization in Washington County. * EMS grants this year will be for training only. We want to add 2 more EMS people and they will need to be trained. Cost for those courses will run $450 to $800 depending on which fire department holds the course. Added to that cost will be gas and book costs. It is a 4 day a week course.

2 - Public Comments – Mark Wells said that the PV Activities Committee would like to set up a town wide clean-up for Memorial Day weekend.

At 7:40 PM, Gerald moved for the meeting to adjourn. Ron seconded.

The next Board meeting will be held on Wednesday, February 7, 2007 at 6:00 P.M.